

Court No. - 39

Case :- WRIT - C No. - 20768 of 2014

Petitioner :- Ram Ratan

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And 2 Others

Counsel for Petitioner :- Subhash Chandra Rai

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Sanjay Misra,J.

Hon'ble Anant Kumar,J.

We have heard Sri Subhash Chandra Rai, learned counsel for the petitioner, learned Standing Counsel for the respondent no. 3 and Sri Baleshwar Chaturvedi, learned counsel for the respondent nos. 1 and 2, who are Dakshinanchal Vidyut Vitran Nigam Ltd. and its officers.

This writ petition is directed against the notice dated 10.1.2012 whereby the petitioner has been required to pay the electricity dues amounting to Rs. 1,90,434/-, failing which the same would be recovered as arrears of land revenue.

Learned counsel for the petitioner has submitted that he does not dispute the amount of the bill but prays that he may be extended the benefit of depositing the same in installments.

Learned counsel for the respondents has referred the Clause 6.14 of the U.P. Electricity Supply Code, 2005 and states that such provision is available under the Code, 2005, where a licensee may be extended the facility of installments.

In view of the aforesaid submission of learned counsel for the parties, we dispose of the writ petition by providing that the petitioner may deposit the entire dues amount in three equal quarterly installments. The first installment would be payable on 1st June, 2014, second installment would be payable on 1st September, 2014 and third installment would be payable on 1st December, 2014. It is made clear that current electricity bills, if any, issued against the petitioner shall be paid by the petitioner, irrespective of the installments. In the event of default in paying the entire dues amount, this order shall stand automatically vacated and the competent authority will be at liberty to recover the aforesaid amount.

The writ petition stands disposed of.

No order is passed as to costs.

Order Date :- 10.4.2014

Rmk.